RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

# Teshuvah Is Not the Misvah: Why the Rambam Begins with Viduy

Hilchot Teshuvah Perek 1

**Sefer:** Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance) **Chapter:** 1 (with the definition of teshuvah from Chapter 2) **Shiur:** Given by Dayan Daniel Kada on Zoom, Tuesday 10 September 2024 (Elul 5784)

*These notes are based on an automatic (Whisper) transcript of the recording.*

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## Introduction: A Full Month of Elul

Welcome back after the summer. This year the calendar gives us a **full month** of Elul to think about teshuvah ("normally we get thrown straight from August into Rosh Hashanah"), and "there is nothing better than learning the ten chapters of the Rambam" to prepare. The plan: Chapter 1 this week, Chapter 2 next week, then selected parts of the other eight. "The core of Hilchot Teshuvah is in the first two chapters."

### Where Hilchot Teshuvah sits

The Mishneh Torah has **14 books**. The first is **Sefer HaMada**, the Book of Knowledge, which the Rambam places first because it contains **the fundamentals every person needs before learning the rest of Torah**:

1. Yesodei HaTorah (Foundations of the Torah)
2. Deot (character traits), which the class has studied
3. Talmud Torah
4. Avodah Zarah
5. **Teshuvah**

You might expect teshuvah to come *after* learning all of halacha, for when you stray. But the Rambam treats it as part of the **foundations**: without it a person cannot fully understand the rest of the Torah.

### Two puzzles

1. **The definition comes late.** Chapter 2 opens **איזוהי תשובה גמורה**, "what is complete teshuvah?", and in 2:2 **ומה היא התשובה**, "what is teshuvah?" Chapter 1 never defines it; it deals with **viduy** and the **scapegoat**. Why would "the laws of teshuvah" not start with what teshuvah is?
2. **"Laws" of teshuvah at all?** The Rambam was **the first** to create a body of law called *Hilchot Teshuvah*. The Mishnah and Talmud have tractates for Rosh Hashanah, Sukkah, Shabbat, but none for teshuvah, and the Shulchan Aruch has none either. Teshuvah seems personal

and emotional, "between me and Hashem." You can legislate a shofar or the size of a sukkah. **How do you legislate a change of heart?**

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## Part 1: The Mitzvah Is Viduy (Halacha 1)

**כל מצוות שבתורה, בין עשה בין לא תעשה, אם עבר אדם על אחת מהן, בין בזדון בין בשגגה, כשיעשה תשובה וישוב מחטאו, חייב להתוודות לפני האל ברוך הוא, שנאמר: איש או אשה כי יעשו... והתוודו את חטאתם אשר עשו (במדבר ה). זה וידוי דברים, ווידוי זה מצוות עשה** For every mitzvah of the Torah, positive or negative, if a person transgressed it, intentionally or not, **when he does teshuvah and returns from his sin, he is obliged to confess** before God, as it says (Naso): "a man or woman who commits any sin... shall confess their sin." This is verbal confession, and **this confession is a positive commandment.**

### "Repentance" is not quite the word

**תשובה** comes from **שב / לשוב**, *to return*. Picture a path: you veer off, and the longer you walk the wrong way, the harder the way back. Teshuvah is getting back onto the path.

### How to confess

**אנא השם, חטאתי עויתי פשעתי לפניך, ועשיתי כך וכך, והרי ניחמתי ובושתי במעשי, ולעולם איני חוזר לדבר זה. וזהו עיקרו של וידוי. וכל המרבה להתוודות ומאריך בעניין זה, הרי זה משובח** Please, Hashem, I have sinned, transgressed and rebelled before You, and I did such-and-such; I regret it and am ashamed of my deeds, and I will never return to this." This is the essence of viduy. The more one confesses and elaborates, the more praiseworthy.

| Word | Kind of sin |
|---|---|
| **חטאתי** | Unintentional |
| **עויתי** | Intentional |
| **פשעתי** | Intentional, as an act of **rebellion** against Hashem, not just out of desire |

### Nothing else atones without teshuvah and viduy

| Even... | ...does not atone until |
|---|---|
| Bringing a **korban** (*chatat, asham*), deliberate or accidental | **עד שיעשו תשובה ויתוודו** |
| Receiving **lashes**, or even **execution** by Beit Din | the person repents and confesses |
| **Paying full compensation** for injuring someone or damaging their property | he confesses and resolves never to do it again |

**Notice the repetition:** every time, **"until he does teshuvah *and* confesses."** So these are **two distinct things**: *teshuvah*, defined in Chapter 2, and *viduy*, defined in Chapter 1. And the Rambam **begins** with viduy, as though it is the main thing.

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## Part 2: Is Teshuvah a Mitzvah?

In **Sefer HaMitzvot**, the Rambam does **not** count teshuvah among the 613.

| | Ramban, *Sefer Mitzvot Gadol* and others | The Rambam |
|---|---|---|
| **Source** | Nitzavim,) **ושבת עד ה' אלהיך... והשבות אל לבבך** (read just before Rosh Hashanah | Reads those verses as a **promise** of what will happen |
| **Is teshuvah one of the 613?** | Yes: once you leave the path, a **separate** command says *come back* | No: the original command already says *stay on the path* |
| **The mitzvah** | Teshuvah | **Viduy**, which comes after teshuvah |

"You may be thinking: teshuvah isn't a mitzvah? Teshuvah is one of the greatest things! 'Where ba'alei teshuvah stand, even the completely righteous cannot stand'!"

**The road-sign analogy.** The sign says *stay in lane*. If you drift out, you don't need a new sign telling you to get back in. The first instruction still applies; every moment out of lane, you are breaking it. The Ramban's view is that Hashem, knowing we are frail, gave 612 rules and a 613th: *when you do drift, come straight back.* The Rambam's view is that "come back" is built into every mitzvah already.

**The consequence:** if a person does teshuvah **without viduy**, "that's fantastic," but strictly speaking **he hasn't performed a specific mitzvah.**

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## Part 3: What Teshuvah Is (from Chapter 2:2)

**ומה היא התשובה? הוא שיעזוב החוטא חטאו, ויסירו ממחשבתו, ויגמור בליבו שלא יעשהו עוד... וכן יתנחם על שעבר**

What is teshuvah? That the sinner abandon his sin, remove it from his thoughts, resolve in his heart never to do it again... and regret what he did.

Three ingredients that are really **one**, **עזיבת החטא**, leaving the sin, in three tenses:

| Tense | Element | Meaning |
|---|---|---|
| **Present** | Stopping | Stop the act, and stop thinking about it |
| **Past** | **Regret** (*charatah*) | "If I could go back in time, I would never have done this" |
| **Future** | **Resolve** (*kabbalah*) | A firm commitment never to do it again |

### Why regret is part of "leaving"

Memory **makes us who we are**. (This is why dementia is such a terrible illness: we live in the present based on our past.) If you stop now but still look back fondly ("that was good fun"), **it's still part of your identity**; you haven't really returned. Sincere regret says: *this is not who I am.*

### Why resolve is part of it

"I really regret it… but next week I may end up doing it again." Without real commitment, you haven't left. "That's the reality of human nature."

### Then why Yom Kippur every year?

If teshuvah means *never again*, why not do it once? 1. Different years, different failings. 2. **The dry-cleaner:** you have a suit cleaned knowing it will get dirty again, and nobody says "why bother?" If you never cleaned it, eventually the cleaner would say it's beyond saving. And you learn from each stain: if the baby got food on it, next time you use a napkin. Next time it will be different dirt, a trip in the dust. "Fine. Again, I learn from that."

### A worked example: lashon hara

The Rabbi cited a survey of American Jewish communities on character traits: **91%** rated **chesed** excellent, while **lashon hara** came out worst, with over 60% feeling the community fell short. "Something we all need to work on."

On Yom Kippur you decide: no more. But if you still savour those dinners laughing about someone, you haven't left it. If you regret it but know that around the table with friends next month you'll do it again, you haven't left it.

**And note:** the sin was already forbidden by the commandment **don't speak lashon hara**. There's no *new* commandment to stop. Leaving it is just keeping the original mitzvah. What the Torah adds is **viduy**.

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## Part 4: Why Viduy, and Why "Laws" of Teshuvah

### Teshuvah is personal; viduy is relational

Teshuvah, stopping, regretting and resolving, is "all in your own mind… all within yourself." But **how do you repair the past?** You can't turn back the clock.

**The employee analogy:** someone slacks for months, nearly gets fired, then returns to doing the job properly. "Am I now going to tell you you're doing an amazing job? You're doing what you were meant to be doing all along." The wasted months remain. If you could, you'd pay back the salary; restitution is best.

**Between people:** someone who has been hurting another stops, regrets it, resolves never again, but "you can't just go back to that person and pretend everything's fine." If it was money, pay it back. Often you can't. So **you confess and ask forgiveness.**

**Viduy is the interpersonal act**: toward another person in *bein adam lachavero*, toward Hashem in *bein adam laMakom*. It says: *I recognise what I did; I want to restore our relationship.*

**This answers the second puzzle.** The "deeply personal thing" is teshuvah, and there are no laws for that. **Viduy is interpersonal**, and that you have to get right. That's what the laws are for.

### *Viduy* and *todah*: the same root

The Rabbi saw this idea in a commentator: **להתוודות** (to confess) and **תודה** (thanks) share a root. Relationships need **balance**. When one side keeps giving, you restore it by reciprocating, or failing that, by saying **thank you**. When one side has wronged the other, you restore it by **acknowledging**: confession.

**Why is revenge sweet?** Because it *also* restores balance: you put me down, I put you down. But it spirals. The better way is forgiveness (very hard) or an apology, an **acknowledgement**, which "goes a long way."

### "Mistakes were made"

"If only public figures would pay attention to this." A real apology has **a subject, a verb and an object**: ***I* did *this* to *you*.** Not "mistakes were made": by whom? to whom? what? That's why viduy is specific: **ועשיתי כך וכך**, "and I did such-and-such."

### Questions from the class

- **Does teshuvah need to be spoken?** No, it's internal and can be done at any time. That is the point of **Elul and the Ten Days**: by Yom Kippur the teshuvah should already be done. "If you go through Yom Kippur without doing teshuvah, it doesn't work."
- **Should people accept others' apologies?** The Rambam discusses it in Chapter 2: generally yes, with some exceptions.
- **Can I regret upsetting Hashem but still enjoy the sin itself?** "An excellent question." **No.** The whole Torah is about our relationship with Hashem; if I still revel in the memory of gossiping, it's still part of me. "It's very difficult. But that's the *avodah* of teshuvah. That's why we have 40 days."

### Why say viduy eleven times on Yom Kippur?

Technically, if the teshuvah is done, **30 seconds** of viduy would do. We repeat it because saying the words, sin by sin, **awakens** the teshuvah: "is this applicable to me?" "The viduy is to awaken the teshuvah within us."

### The *tovel veSheretz beYado*

> One who confesses (2:3) **כל המתוודה בדברים ולא גמר בליבו לעזוב, הרי זה דומה לטובל ושרץ בידו** with words but hasn't resolved to leave the sin is like someone **immersing in a mikveh while holding a sheretz** (an impure creature).

"One of the most beautiful analogies." Yom Kippur is the mikveh. You can say every viduy in the machzor, but if you come out still holding the sin, you come out impure again.

### Yeshayahu's rebuke

The haftarah of **Shabbat Chazon** before Tisha B'Av: *why are you bringing me all these sacrifices*, then oppressing the widow and orphan the next day? Today's equivalent: **writing a big cheque to charity** with no introspection. "A good deed, but it doesn't repair things. That's the lazy way out."

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## Part 5: The Scapegoat (Halachot 2–3)

**שעיר המשתלח, לפי שהוא כפרה על כל ישראל, כהן גדול מתודה עליו על לשון כל ישראל**

- The English word **"scapegoat"** was coined by **William Tyndale in 1530**, translating the Torah.
- It was **psychological**: watching your sins "placed" on the goat and sent away, *it's not me any more, it's not my identity.* All part of teshuvah.
- The Kohen Gadol confessed on behalf of everyone, for every kind of sin.
- **Without teshuvah**, would the goat atone? **Chachamim**: not at all. **Rebbi**: yes, even for severe sins. **The Rambam takes a middle path**: only for **less severe** sins (those without death penalty or karet). The **Beit Yosef** (Kesef Mishneh) leaves this as a question; others (Lechem Mishneh) offer answers. The Rabbi's suggestion: the process itself had some intrinsic effect.

**בזמן הזה שאין בית המקדש קיים ואין לנו מזבח כפרה, אין שם אלא תשובה. התשובה מכפרת על כל העבירות**
Today, with no Temple and no altar, there is only teshuvah, and **teshuvah atones for all sins.**

**Even a lifetime of sin:** the Gemara (Avodah Zarah 17a) tells of **Elazar ben Durdaya**, who spent his life travelling the world pursuing women, realised his life had no meaning, did complete teshuvah, was fully forgiven, and was granted a share in the World to Come.

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## Part 6: Four Levels of Atonement (Halacha 4)

| Sin | What atones |
|---|---|
| **Neglecting a positive mitzvah** (tefillin, shofar, sukkah, tzitzit, prayer) | **Teshuvah alone, immediately.** "As soon as you decide 'I'm coming back,' done. You don't need Yom Kippur." |
| **A negative mitzvah** without death penalty or karet (lashes) | Teshuvah, **completed by Yom Kippur** |
| **A sin carrying karet or a death penalty** (e.g. public chillul Shabbat) | Teshuvah and Yom Kippur, **plus suffering** (*yissurin*) during the year |
| **Chillul Hashem** | All of the above, and only **death** completes it |

### *Mechilah, selichah, kaparah*

On Yom Kippur we ask for **מחילה, סליחה וכפרה**. Throughout this chapter the Rambam uses **כפרה**, the highest: - **לכפר** means to **wipe clean**, a clean slate. Yaakov before meeting Esav: **אכפרה פניו במנחה**, "I will clear [his anger] with the gift." - **מחילה** is partial: forgiven, but not wiped clean. - So for the gravest sins, Yom Kippur gives **mechilah** but not full **kaparah** until the suffering completes it.

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## Summary

1. **Hilchot Teshuvah is foundational**: the last section of Sefer HaMada, the "knowledge" every Jew needs first.
2. **For the Rambam, the mitzvah is viduy, not teshuvah.** Teshuvah is returning to what you were always obliged to do; the original commands still apply.
3. **Teshuvah = leaving the sin** in the present (stopping), past (regret) and future (resolve).
4. **Teshuvah is internal; viduy restores the relationship.** That's why it has *laws*, why it must be **spoken** and **specific** ("I did X"), and why it shares a root with *todah*.
5. **Viduy without teshuvah** is immersing with a sheretz in your hand.
6. Today, **teshuvah atones for everything**, with four levels of how atonement is completed.

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## Coming Up

**Next week: Chapter 2**: *teshuvah gemurah*, complete teshuvah, and more on what teshuvah and viduy involve.

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